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[doc. web n. 9979112]

Provision of January 11, 2024

Register of provisions

n. 6 of January 11, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, general secretary;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to the processing

of personal data, as well as the free movement of such data and

repealing Directive 95/46/EC, "General Data Protection Regulation"

(hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,

containing the "Code regarding the protection of personal data,

containing provisions for the adaptation of the national

legislation to Regulation (EU) 2016/679 of the European

Parliament and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to the processing

of personal data, as well as the free movement of such data

and repealing Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning the

internal procedures of external relevance, aimed at carrying out

the tasks and exercising the powers delegated to the Guarantor

for the protection of personal data, approved by resolution No.

98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019

and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor

Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the general secretary

pursuant to Article 15 of Guarantor Regulation No. 1/2000 on

the organization and functioning of the office of the Guarantor

for the protection of personal data, doc. web n. 1098801;

Rapporteur Prof. Pasquale Stanzione;

PREMISED

1. Introduction.

As part of an initiative aimed at facilitating compliance with

personal data protection obligations, with a note dated XX (prot.

n. XX), the Authority informed the Municipality of

Siracusa (hereinafter, the "Municipality"), that:

- "it has made available a specific online procedure for the communication, variation, and revocation of the name of the designated DPO," which "represents the only contact channel that can be used for this specific purpose and can be found at the page <https://servizi.gpdp.it/comunicazionerpd/s/>, where the appropriate instructions are also provided";

- "following a series of checks on the communications received, starting from the tax codes of public entities, as collected in

the Index of digital domiciles of public administrations and public service managers (IPA)” it was found that, “for this Entity, the required communication of contact data is not registered in its archives” and, therefore, this Municipality was invited “to carry out a check on the communication made at the time, verifying, in particular, if it contains errors” and, consequently, “Following the checks, [...] to carry out the necessary regularization, proceeding as soon as possible”;

- “The Authority will carry out further checks; should any anomalies regarding the aforementioned obligations by this Entity still be found, it reserves the right to initiate proceedings to ascertain any responsibilities.”

From a check carried out by the Authority in 2023 on the Municipality's website, it emerged that the contact details of the Data Protection Officer (hereinafter, the “DPO”) appointed pursuant to Article 37 of the Regulation were published, but the communication of the DPO's contact details to the Authority using the aforementioned dedicated channel remains outstanding.

2. The investigative activity.

With a note dated XX (prot. n. XX), the Office, based on the elements acquired and the checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the provisions referred to in Article 58, paragraph 2, of the Regulation, for failing to communicate the DPO's contact details to the Authority, in violation of Article 37, paragraph 7, of the Regulation.

With the same note, the Municipality was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX (prot. n. XX), the DPO of the Municipality submitted their defensive memorandum, stating, among other things, that:

- “the undersigned Dr. [...], in the capacity of Director of the Municipality of Siracusa, has been appointed Data Protection Officer [...] with Mayoral Decree No. XX of XX”;
- “not having received communication of what this Guarantor for Privacy had sent to the Municipality of Siracusa in 2020 and initiated the necessary checks, which were not positively verified by the municipal offices, the undersigned contacted the offices of the Guarantor by phone and requested the protocol number of the communication of the Data Protection Officer appointed by the junta resolution 145 of 21-05-2018, modified by junta resolution n.

Regulation, including the nature, gravity, and duration of the infringement, as well as any previous infringements by the same entity.

6. Final Provisions.

This decision is subject to appeal in accordance with the provisions of Article 78 of the Regulation. The appeal must be submitted to the competent judicial authority within the terms established by law. The parties involved will be notified of this decision and the relevant provisions for the appeal process.

7. Notification.

The present decision will be communicated to the Municipality of Siracusa and published on the website of the Authority, in compliance with Article 166, paragraph 7, of the Code.

8. Entry into Force.

This decision shall enter into force on the day following its publication.

Regulation, in relation to which the following is observed.

The failure to communicate the contact details of the DPO by the Municipality negatively impacted the Authority's ability to contact the DPO easily and directly. Furthermore, it is noted that this failure to communicate involved two DPOs designated by the Municipality over time (the one from 2018 and the one from 2022), and that the Municipality itself proved to be non-compliant even after receiving the Authority's communication in 2020 on the same subject.

On the other hand, it is noted that the Municipality took steps to partially remedy the violation and mitigate its possible negative effects (having communicated the contact details of the currently appointed DPO to the Authority on June 5, 2023) and that there are no previous relevant violations or previous measures against it pursuant to Article 58 of the Regulation. It is also noted that the violation was negligent.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction, set at €5,000 (five thousand) for the violation of Article 37, paragraph 7, of the Regulation as an administrative monetary sanction considered, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

It is also deemed that the accessory sanction of publication of this provision on the website of the Authority should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, given that it concerns the failure to comply with an obligation that has been mandatory for more than five years.

Finally, it is believed that the conditions set forth in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the conduct of the Municipality of Syracuse, described in the reasoning, unlawful, consisting of the violation of Article 37, paragraph 7, of the Regulation.

ORDERS

The Municipality of Syracuse, located at Piazza Duomo No. 4, 96100, Syracuse - C.F. 80001010893 - pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation and Article 166, paragraph 2, of the Code, to pay the sum of €5,000 (five thousand) as an administrative monetary sanction for the violations indicated in the reasoning;

COMMANDS

The Municipality of Syracuse, to pay the sum of €5,000 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to Article 27 of Law No. 689/1981.

In this regard, it is reminded that the offender retains the option to settle the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

DISPOSES

the publication of this provision on the website of the Authority pursuant to Article 166, paragraph 7, of the Code;

the annotation of this provision in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance

with Article 58, paragraph 2, of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision, it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 11, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei